

Ref No.: BD-ACEPM-SAMCO-LET-031

Date: Sunday, 19th of April 2026

To: SAMCO National Construction Company

Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: The Big Business District Project- Civil Works for Buildings B1, B2, B3 and B4 "Follow-up on Settlement of Interim Payment Certificates (IPCs)"

Reference (S):

- 1) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-0054 dated 25/02/2026
- 2) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-0068 dated 16/04/2026

Dear Sir,

With reference to the above-mentioned subject and the Contractor's correspondence Ref. No. (1) and (2), the Engineer hereby provides the following clarification:

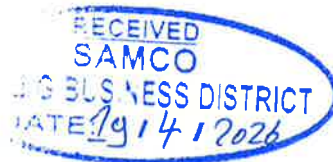
First, concerning the Contractor's allegation that payments related to the referenced Interim Payment Certificates (IPCs) have exceeded the contractual due dates, the Engineer rejects this assertion as being based on an incorrect interpretation of the Contract provisions.

Pursuant to Sub-Clause 14.3 (Application for Interim Payment Certificates) of the General Conditions, the Contractor is obligated to submit the IPC in accordance with the Contract requirements. Furthermore, it is explicitly stipulated that the Engineer shall not be bound to issue any Interim Payment Certificate for an amount is less than the minimum amount stated in the Appendix to Tender.

In this regard, the Appendix to Tender clearly establishes that the minimum amount of the IPC is 70% of the monthly cash flow. It is evident that IPCs No. (1), (2), and (3) submitted by the Contractor do not comply with this mandatory contractual threshold.

Accordingly, any issuance of IPCs and/or payments made by the Employer in relation to such non-compliant submissions shall be construed strictly as a matter of administrative facilitation and shall not constitute, under any circumstances, a waiver of the Employer's contractual rights, nor an acceptance of the Contractor's deviation from the agreed payment conditions.

Second, it is noted that IPC No. (2) was submitted on 29/12/2025, less than one month following the submission of IPC No. (1) on 6/12/2025, which is inconsistent with the contractual requirement for monthly submission of Statements.



In light of the above, and in accordance with Sub-Clause 1.15 [Non-Waiver, Severability and Entire Agreement] of the Particular Conditions, the Employer expressly reserves all its rights. Any prior issuance of IPCs or execution of payments shall not be deemed as a waiver of any rights, remedies, or entitlements of the Employer, nor shall it prejudice the Employer's right to enforce strict compliance with all contractual obligations for both past and future submissions.

Yours faithfully,
Eng. Abdelaziz Mohammed

ACE-PM
MOHARRAM BAKHOUM
Project Manager
ACE Project Management

Attachment(s): N/A

CC:

Eng. Mohamed Hamza - Projects Manager
Eng. Mostafa Gala - Owner representative
Eng. Ahmed Saafan – Project Controls Director
Eng. Ramy Refaat – Commercial Contracts Director
Eng. Osama Waly – PCO representative

M.S